

FL-26-001813 LOPEZ VS LOPEZ

County: stanislaus

Division: Family Law

Department: 13

Hearing date: 2026-09-28

Motion: Respondent's Request for Order re Child Custody, etc.—HEARING REQUIRED, in part; DENIED, without prejudice, in part. The child custody and spousal support requests are not eligible for tentative ruling and require a hearing. The request for “division” of personal property is denied without prejudice. The Court does not characterize, value or divide the marital estate, including personal property, until the time of trial unless the parties agree and stipulate to the division. That said, it appears Respondent's request is actually seeking temporary exclusive possession as to the subject property and the Court has authority to grant such a request, but the present RFO did not seek this order. Given Petitioner's Responsive Declaration, it does not appear that there is any agreement of the parties as to property and, if not, then Respondent will need to file a separate RFO seeking such an order. The following are the tentative ruling cases calendared before Judge Sarah Birmingham in Department #14:

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/family-law-tentative-rulings>

Source SHA-256: ddb570e9c947e37de2dcc7e7ea36bb9b2235010e14532b0981fecc8c9cb87a3

FL-26-001813 – LOPEZ VS LOPEZ

Respondent's Request for Order re Child Custody, etc.—HEARING REQUIRED, in part; DENIED, without prejudice, in part.

The child custody and spousal support requests are not eligible for tentative ruling and require a hearing.

The request for “division” of personal property is denied without prejudice. The Court does not characterize, value or divide the marital estate, including personal property, until the time of trial unless the parties agree and stipulate to the division. That said, it appears Respondent's request is actually seeking temporary exclusive possession as to the subject property and the Court has authority to grant such a request, but the present RFO did not seek this order. Given Petitioner's Responsive Declaration, it does not appear that there is any agreement of the parties as to property and, if not, then Respondent will need to file a separate RFO seeking such an order.

The following are the tentative ruling cases calendared before Judge Sarah Birmingham in Department #14: